Agency correspondence and case-index extracts

Selected materials released in the 2026 administrative case file, plus contemporaneous communications held by MIC. References to CBP and government mailboxes are fictional.

Origin enquiry initiation record - 24-ORI-1492

Record type: agency case-index extract | Entered: 19 September 2024, 10:12 CT | Authored: Priya Shah, CBP trade-compliance analyst

Information received 18 September from a supplier-record referral indicates possible incorrect USMCA origin representations for IR24-6A relays, especially CB-4 board configurations. The certificate record appears to cover multiple manufacturing changes without a supporting lot-level value-content test. MIC is importer of record; MSS is purchaser and has provided commercial data. Consider whether a material misstatement may have caused entry with improper preference.

CBP origin case opened after review of the supplier-record referral; HSI liaison copied for follow-up. Initial records to request: m23-b and m24-b manufacturer sheets, individual entry summaries, and correspondence with importing personnel. This agency extract was included as an attachment to the 2026 prepenalty mailing.

Special Agent records request

Sender: Jordan Bell (HSI Special Agent, ICE) | To: melissa.chen@mss.example | 26 September 2024, 15:46 CT

I am identifying myself as an HSI Special Agent conducting a customs-related inquiry under reference 24-ORI-1492. My inquiry concerns possible incorrect declarations of USMCA origin involving IR24-6A relays introduced by your group. Please provide supplier origin files and changes concerning CB-4 manufacturing, original commercial invoice transmissions and evidence of your organisation's involvement in preparing the information submitted to the broker. Documents may be sent through the identified secure channel by October 7.

Transmission record: recipient accepted delivery 26 September 16:12. The message was copied to the MSS legal mailbox, but was not addressed directly to MIC.

Port import specialist telephone note

File: LRD-OPS-241008 | Caller: Anna Reyes, MIC | Recorded by: port import specialist | 8 October 2024, 09:37 CT

Caller said the U.S. company was reviewing buyer-funded fixtures and engineering costs on relay entries from 2023 and 2024, and that the related companies used two land entry ports. Caller was uncertain whether tooling and factory programme expenses should have been included with the invoices. I referred caller to Fines, Penalties and Forfeitures to submit a record. Caller said a written account and entry-date list would follow.

Note does not record any specific AP invoice number, a best estimate of correct value or the identity of a separate subsidiary. No finding on legal sufficiency was entered during the call.

Value-related lead and agency index entry

Record type: agency case-index extract | Recorded: 14 October 2024, 15:21 CT | Authored: Priya Shah, CBP analyst | Reference: 24-VAL-1551

Received capital ledger showing MSS-funded D17 stamping die and engineering costs, while MIC entry summaries report only the finished relay invoice values. Possible material omission of additions to transaction value; no conclusion yet on necessary allocation or works performed in the United States. Enquiry index 24-VAL-1551 created on this date and routed to import appraisement staff.

Agency routing note 15 October: request copies of tool invoices, delivery records and entry allocation from MIC and MSS. The index was produced to counsel in the 2026 administrative document packet.

Mail intake and multi-port routing

Source: Laredo CBP mail log and port service ledger | 17 - 21 October 2024

A return-receipt certified mailing addressed to Commissioner of CBP via Laredo port office, postmarked October 12, was received October 17 at 11:19 CT. The outside envelope bore the words "Prior Disclosure". The file refers to production support associated with IR24-6A entries through Laredo and El Paso. Copies of the letter were sent to the El Paso FP&F contact by courier, received October 21.

Routing note: No agency determination of disclosure eligibility was entered at intake. Laredo marked the package "received for preliminary review" and forwarded it to FP&F.

Verification questions to MIC and MSS

From: fpf-laredo@cbp-simulated.example [simulated] | To: counsel for MIC | 5 November 2024

We have your production-support disclosure submission, accompanied by available lists of relay merchandise and general entry periods. Please identify specific costs, which additions were included in entered value and which were not, and explain any continued transactions after your initial date. We will not treat an accounting classification as a customs determination.

We received the separate origin-correction statements through the relevant entry channels. Any treatment of those statements under the USMCA provisions remains under review; this email should not be read as acceptance or rejection.

Extension record for unliquidated entries

Record: liquidation extension notices issued to MIC | 10 September and 20 November 2025

The agency advised MIC of extension of the liquidation period for certain September-November 2024 entries while obtaining additional information on valuation and origin. The tracked entry references are E31-E37, as represented in the importer-generated register. For other entries, the importer maintains liquidation-event dates in its entry-system download.

Supplement dated November 20, 2025: examination cannot be completed with currently available information; the initial extension record was posted September 10, 2025. The notices do not state that an administrative penalty has been imposed.

Administrative production transmittal

From: FP&F administrative officer | To: counsel for MIC / MSS | 28 October 2026

In response to requests accompanying the notice of proposed action, we enclose the agency index excerpts for 24-ORI-1492 and 24-VAL-1551, the September HSI special-agent records request, and the October port intake extract. The material is provided to allow respondents to address the alleged facts and disclosure assertions. The records are not a final determination as to the legal consequences of a disclosure.

Additional agency telephone and MSS intake extracts

Retained extracts supplied with the 28 October 2026 administrative production. These reproduce contemporaneous files, not later findings or legal determinations.

HSI preliminary outreach index

Agency call-routing extract, reference 24-ORI-1492 | 23 September 2024 | Prepared by HSI case coordinator

16:41–16:44 CT: Outgoing attempted call by Jordan Bell to MSS general reception line. Contact reached receptionist; callback request recorded. Dispatcher notation: “CB-4 origin paperwork / supplier master — request routing to purchasing director.” No recording of a substantive discussion with Melissa Chen appears in the agency call-return ledger for 23 or 24 September.

The outbound record identifies the same investigative file as the later 26 September document request. The agency has not certified the words audible to the intended MSS contact from the reception recording or identified when an authorised MSS decision-maker received the ticket.

Port import specialist — oral conversation

Laredo port telephone intake | 25 September 2024, 10:36 CT | Intake reference LRD-OPS-240925

Caller identified herself as Melissa Chen at MSS, which supplies procurement data and certificates for a U.S. importer. She described possible incorrect origin statements arising from purchased-board substitutions in IR24-6A relays and said supplier cost data for the Laredo/El Paso programme was being obtained. She said MSS had transmitted a common master to the broker and was concerned that some entry claims carried outdated support. The officer recorded the merchandise, manufacturing changes and approximate 2023–2024 time period.

Port form category marked “company-origin information / procedural guidance.” The narrative reads: “caller says she is reporting circumstances of possible wrong entry origin data; wants FP&F to have this and asks where written confirmation goes.” No definitive run-level calculations or complete transaction list were supplied. Intake referred the conversation to FP&F; the officer did not certify statutory sufficiency or prior-disclosure treatment.

MSS correspondence intake and agency annotation

Laredo FP&F docket | 1–3 October 2024 | Ref: mss-origin-review

1 October, 15:22 CT: Received MSS courier packet referencing the September 25 port conversation. Received by staff member KL-2 and routed to origin case support. Log shows no separate entry duties remittance attached. October 3: procurement materials later supplemented through the importer’s origin-correction channel as filing OC-01, submitted by MIC and not formally designated a joint prior disclosure by MSS.

Docket comment (created 3 October): “Match September telephone entries and October correspondence to original routing records. Additional record copies requested from origin unit.”